

NEGOTIATED AGREEMENT BETWEEN THE

**METROPOLITAN
ALLIANCE OF POLICE
WEST DUNDEE POLICE
CHAPTER # 153**

AND

THE VILLAGE OF WEST DUNDEE

5-1-2023 THROUGH 4-30-2026

Table of Contents

ARTICLE I RECOGNITION	1
Section 1.1 Recognition	1
Section 1.2 Probationary Period	1
Section 1.3 Fair Representation	1
Section 1.4 Gender	1
Section 1.5 Chapter Officers	2
ARTICLE II MANAGEMENT RIGHTS	2
Section 2.1 Management Rights	2
ARTICLE III LAYOFF	3
Section 3.1 Layoff	3
Section 3.2 Recall	3
ARTICLE IV NO STRIKE CLAUSE	3
Section 4.1 No Strike Clause	3
Section 4.2 No Lockout	4
Section 4.3 Judicial Restraint	4
Section 4.4 Discipline of Strikers	4
ARTICLE V COMPENSATION, OVERTIME AND HOURS OF WORK	4
Section 5.1 Compensation	4
Section 5.2 Normal Work Hours	5
Section 5.3 Days Off	5
Section 5.4 Call Back	5
Section 5.5 Overtime	5
Section 5.6 Court Time	7
Section 5.7 Work Breaks	7
Section 5.8 Shift Selection/Assignment to Permanent Shift	7
Section 5.9 Meetings	8
Section 5.10 Officer In Charge Compensation –	8
Section 5.11 Compensatory Time	8
Section 5.12 Lateral Hires	9
ARTICLE VI UNION SECURITY AND DUES CHECK-OFF	9
Section 6.1 Dues Deductions	9
Section 6.2 Indemnity	9
Section 6.3 Revocation of Dues	9
Section 6.4 Bulletin Boards	9
Section 6.5 Labor-Management Meetings	9
ARTICLE VII VACATION	10
Section 7.1 Eligibility and Allowances	10
Section 7.2 Scheduling	10
Section 7.3 Accrual Schedule	12
Section 7.4 Accumulation	12
Section 7.5 Village Emergency	12

ARTICLE VIII HOLIDAY AND PERSONAL TIME	12
Section 8.1 Holidays	12
Section 8.2 Holiday Pay	12
Section 8.3 Holiday Scheduling	13
ARTICLE IX LEAVE OF ABSENCE	13
Section 9.1 Absence from Work	13
Section 9.2 Sick Leave	13
Section 9.3 Sick Leave Accrual and Usage	14
Section 9.4 Sick Leave Incentive	14
Section 9.5 Conversion of Sick Time Incentive at Retirement	14
Section 9.6 Funeral Leave	15
Section 9.7 General Leave of Absence	16
Section 9.8 Military Leave	16
Section 9.9 Jury Duty	16
Section 9.10 Maternity/Paternity Leave	16
Section 9.11 Paid Leave for All Workers Act	17
ARTICLE X EDUCATION BENEFITS	17
Section 10.1 On-Duty Training	17
Section 10.2 Scheduling of On-Duty Training	17
Section 10.3 Educational Reimbursement	17
Section 10.4 Travel and Meeting Expense Allowances	17
Section 10.5 Probationary Police Officers and Reimbursement of Training Costs	18
ARTICLE XI GRIEVANCE PROCEDURE	19
Section 11.2 Fees and Expenses of Arbitration	21
Section 11.3 Forms	21
Section 11.4 General Rules	21
Section 11.5 Notice of Union Representation	22
ARTICLE XII NON-DISCRIMINATION	22
Section 12.1 Non-Discrimination	22
Section 12.2 Chapter Activity	22
ARTICLE XIII DISCIPLINE	22
Section 13.1 Procedure of Discipline	22
Section 13.2 Jurisdiction of Police and Fire Commission	23
Section 13.3 Use of Reprimands and Discipline	23
Section 13.4 Personnel Files	23
ARTICLE XIV INVESTIGATIONS CONCERNING OFFICERS	23
Section 14.1 Right to Investigate	23
Section 14.2 Right to Representation	23
Section 14.3 Global Positioning Units/Body Worn Cameras/Surveillance of Employees	24
ARTICLE XV HEALTH INSURANCE, DENTAL, AND LIFE INSURANCE	24
Section 15.1 Health Insurance	24
Section 15.2 Life Insurance	26
Section 15.3 Continuation of Benefit	26
Section 15.4 Waiver of Health and/or Dental Insurance	26

ARTICLE XVI UNIFORM BENEFITS	26
Section 16.1 Benefits	26
Section 16.2 Damage to Uniforms or Property	27
Section 16.3 Vests	27
ARTICLE XVII OFF DUTY EMPLOYMENT	27
Section 17.1 Employment Outside Department	27
Section 17.2 Extra Duty Details	27
ARTICLE XVIII SENIORITY	27
Section 18.1 Seniority	27
Section 18.2 Determination of Seniority	28
Section 18.3 Maintenance of Seniority List	28
Section 18.4 Forfeiture of Seniority	28
ARTICLE XIX SAVINGS CLAUSE	28
Section 19.1 Savings Clause	28
ARTICLE XX ENTIRE AGREEMENT	29
Section 20.1 Entire Agreement	29
Section 20.2 Ratification and Amendment	29
ARTICLE XXI LIGHT DUTY	29
Section 21.1 Work Schedule for Light Duty	29
ARTICLE XXII SPECIALIST POSITIONS COMPENSATION	29
Section 22.1 Specialty Pay	29
ARTICLE XXIII GENERAL PROVISIONS	30
Section 23.1 Immunization and Inoculations	30
Section 23.2 Killed in Line of Duty Benefit	30
Section 23.3 Medical Evaluations	30
Section 23.4 Fitness Examinations	30
Section 23.5 Employee Fitness	31
Section 23.6 Residency	31
Section 23.7 Solicitation	31
Section 23.8 Drug and Alcohol Testing	32
Section 23.9 Part Time Officers	32
ARTICLE XXIV TERMINATION	32
Section 24.1 Termination	32
APPENDIX B SENIORITY LIST –UPDATED 5/30/23	34

PREAMBLE

This Agreement entered into by the Village of West Dundee, Kane County, Illinois, hereinafter referred to as "the Employer," and the Metropolitan Alliance of Police West Dundee Police Chapter # 153, hereinafter referred to as "the Chapter," is intended to promote harmonious and mutually beneficial relations between the Employer and the Chapter, and is set forth herein the basic and full agreement between the parties concerning rates of pay, wages and other conditions of employment for full-time police officers and probationary police officers with the rank of Sergeant and below of the Village of West Dundee, as defined herein below and hereinafter referred to as "Officers" or "employees", or when the context requires a singular noun, as "Officer" or "employee".

ARTICLE I RECOGNITION

Section I.1 Recognition

Pursuant to an election and certification by the Illinois Labor Relations Board under Case No. S-RC-01-079 dated April 26, 2002, and the certification issued thereon to the Chapter by the State of Illinois Labor Relations Board, the Employer recognizes the Chapter as the exclusive bargaining agent for the purpose of establishing wages, hours, and other conditions of employment for all sworn full-time, and probationary officers with a rank of Sergeant and below within the police department of the Village of West Dundee, as described above, excluding all other persons employed by the Village of West Dundee. None of the provisions of this Agreement shall be construed to require either the Employer or the Chapter to violate any Federal or State Laws. The Chapter recognizes the Village's right to employ and utilize auxiliary or part-time police officers to the extent allowed by law. In the event any provisions hereof or hereinafter stated shall conflict with any such law, such provision shall be modified to the extent necessary to conform to said laws.

Section I.2 Probationary Period

As established by the Village's Board of Fire and Police Commissioners, the probationary period for Officers is twelve (12) months in duration from the date of graduation from the Academy, or if no Academy training is required, twelve (12) months from the date of employment. Nothing herein shall be construed to modify the Commission's authority to set or modify probationary periods. During the probationary period, an officer is subject to discipline, including discharge, without cause and with no recourse to the grievance procedure or any other forum. It is further agreed that probationary officers shall be entitled to all other rights, privileges, and benefits conferred by this agreement except as previously stated, or as otherwise provided in this Agreement.

Section I.3 Fair Representation

The Union recognizes its responsibility as bargaining agent and agrees fairly to represent all employees in the bargaining unit, whether or not they are members of the Union.

Section I.4 Gender

Wherever the male gender is used in this Agreement, it shall be construed to include both males and females equally.

Section I.5 Chapter Officers

For purposes of this Agreement, the term "Chapter Officers" shall refer to the Chapter's duly elected President, Vice-President, and Treasurer. Within five (5) business days of the election of new Chapter Officer(s), the Union will notify the Chief of Police.

ARTICLE II MANAGEMENT RIGHTS

Section II.1 Management Rights

Except as specifically limited by the express provisions of this Agreement, the Village retains all traditional rights to manage and direct the affairs of the Village in all of its various aspects and to manage and direct its employees, including but not limited to the right to make and implement decisions with respect to the following matters without having to negotiate over such decisions or the effects of such decisions: to establish, plan, direct, control and determine the budget and all the operations, services, policies and missions of the Village; to supervise and direct the working forces; to establish the qualifications for employment and job positions and to employ employees; to determine examination criteria and techniques and to conduct examinations; to schedule and assign work, to assign, transfer and reassign employees; to establish specialty positions and select personnel to fill them; to establish work, performance and productivity standards and, from time to time, to change those standards; to assign overtime; to purchase or contract out for goods and services; to determine the methods, means, organization and number of personnel by which such operations and services shall be made or purchased; to make, alter and enforce reasonable rules, regulations, orders, policies and procedures; to evaluate, promote or demote employees; to establish reasonable physical and mental standards for employees; to determine whether work and/or services are to be provided by employees covered by this Agreement (including which employees) or by other employees or persons not covered by this Agreement; to discipline, suspend and discharge non-probationary employees for just cause (probationary employees without cause); to change or eliminate existing methods, equipment or facilities or introduce new ones; to determine policies affecting the training of employees, to determine training needs and assign employees to training; to determine work hours (shift hours), to establish, change, add to or reduce the number of hours, shifts, tours of duty and schedules to be worked; to adopt, change or modify work rules; to determine internal investigation procedures; to do all things expressly granted and reserved exclusively to the Village under Illinois Compiled Statutes 5 ILCS 315/4 or as modified; to take and all actions as may be necessary to carry out the mission of the Village and the Police Department in the event of civil emergency as may be declared by the Village President, Police Chief, or their authorized designees, which may include, but not be limited to, riots, civil disorders, tornado conditions, floods or other catastrophes. In the event of such emergency action, the provisions of this Agreement, other than compensations provisions, may suspended, if necessary, provided that all provisions of the Agreement shall be immediately reinstated once the local disaster or emergency condition ceases to exist; and to carry out the mission of the Village.

ARTICLE III

LAYOFF

Section III.1 Layoff

Where there is an impending layoff with respect to the employees in the bargaining unit, the Village shall inform the Chapter in writing no later than thirty (30) days prior to such layoff, except in the event of an emergency or unanticipated business need in which case as much notice to the Union as practical will be provided by the Village. The Village will provide the Chapter with the names of all employees to be laid off prior to the layoff. Part-Time officers shall be laid off first, followed by full-time probationary employees and then full-time employees of the bargaining unit. Full-time employees shall be laid off in order of inverse seniority. No part time employees will be utilized by the Village while a full-time employee is on layoff status.

No employee will be hired to perform those duties normally performed by an employee while any employee is on layoff status.

Any employee who has been laid off shall be placed on the appropriate reinstatement list and shall be recalled on the basis of seniority in the police department.

Section III.2 Recall

Employees who are laid off shall be placed on a recall list for a period of one (1) year. If there is a recall, employees who are still on the recall list, and qualified to return to work as a police officer, shall be called in the inverse order of their layoff. The employees who are eligible for recall shall be given twenty-one (21) calendar days' notice of recall. Notice of recall shall be sent to the employee by certified or registered mail, return receipt requested, with a copy to the Chapter. The employee must notify the Chief of Police or his designee of his intention to return to work within seven (7) days after receiving notice of recall. The Village shall be deemed to have fulfilled its obligation by mailing the recall notice by certified or registered mail, return receipt requested, to the mailing address last provided by the employee, it being the obligation and responsibility of the employee to provide the Chief of Police or his designee with his latest mailing address. If an employee fails to timely respond to the recall notice his name shall be removed from the recall list.

ARTICLE IV NO STRIKE CLAUSE

Section IV.1 No Strike Clause

Neither the Chapter nor any officers, agents or employees will instigate, promote, sponsor, engage in or condone any strike, sympathy strike, secondary boycott, slowdown, speed-up, sit-down, concerted stoppage of work, concerted refusal to perform overtime, concerted, abnormal or unapproved enforcement procedures or policies or work to the rule situation, mass resignations, mass absenteeism, picketing of any Village building, facility or work site, or picketing which in any way results in the interruption or disruption of the operations of the Village, regardless of the reason for so doing. Each employee who holds the position of officer or steward of the Chapter occupies a position of special trust and responsibility in maintaining and bringing about compliance with the provisions of this Article. In addition, in the event of a

violation of this Section of this Article, the Chapter agrees to inform its members of their obligations under this Agreement and to direct them to return to work.

Section IV.2 No Lockout

The Village will not lock out any employees during the term of this Agreement as a result of a labor dispute with the Chapter.

Section IV.3 Judicial Restraint

Nothing contained herein shall preclude the Village or the Chapter from obtaining judicial restraint and damages in the event the other party violates this Article.

Section IV.4 Discipline of Strikers

Any employee who violates the provisions of Section 4.1 of this Article may be subject to disciplinary action, up to and including discharge, and to statutory penalties. Any action taken by the Employer against any employee who participates in any action prohibited by Section 4.1 above shall not be considered as a violation of this Agreement and shall not be subject to the provisions of the grievance procedure. The failure to confer a penalty in any instance is not a waiver of such right in any other instance, nor is it a precedent.

ARTICLE V COMPENSATION, OVERTIME AND HOURS OF WORK

Section V.1 Compensation

Compensation of covered employees shall be paid according to Appendix A attached hereto and by reference incorporated herein.

Employees will be placed in Step 1 upon hire or promotion. Covered employees shall be placed in the wage scale pursuant to their respective years of service.

Wage increases ("step" and annual wage scale increases) shall occur for all eligible employees on May 1, at the start of the Village fiscal year, provided the employee receives a satisfactory annual performance evaluation. Should a covered employee be denied a May 1 wage increase due to an unsatisfactory evaluation, said officer shall be eligible for a mid-year performance evaluation to determine if he/she should receive the appropriate increase if and when the employee's performance improves to a satisfactory level and the date upon which the increase is effective.

Patrol officers and sergeants will receive general wage increases on May 1 of each year. Patrol Officers and sergeants will receive step raises on May 1 of each year, provided the officer or sergeant has completed at least nine (9) months of service, in grade, on that date; if not, the Patrol Officer or Sergeant will receive his step raise upon their completion of nine (9) months of service. All subsequent step increases shall be on May 1 of each year, as set forth above. New employees may be hired at a step higher than step 1 with prior police academy training and/or experience. The Village has the ability to accelerate an employee's movement through the steps if warranted by exceptional performance.

Section V.2 Normal Work Hours

Any time worked in excess of 84 hours in a two-week pay period shall constitute overtime and shall be paid at the rate of one and one-half (1 ½) times the employees' current rate of pay. The eighty-four (84) hour pay periods and elimination of the Kelly Day practice will remain in effect during the term of this Agreement.

The Village will provide the Union at least sixty (60) days of prior notice before making any changes to the normal 12-hour workday and/or normal pay period of 84 hours so that parties can meet to discuss such changes, if requested during that 60-day period.

Section V.3 Days Off

Consideration for days off (*i.e.* comp time, personal days, and floating holidays) will first go to the requests of individual Employees in conjunction with approved vacation, then by seniority, provided specific requests are made no later than ten (10) days prior to the start of the affected shift. Requests for specific days off submitted later than ten (10) days prior to the start of the shift will not enjoy the priority of seniority. All requests for days off are subject to the manpower requirements of the Department.

Section V.4 Call Back

If an employee is called into work for non-scheduled activities (such as investigations, patrol duties, evidence work, or the like), the employee shall be compensated for the actual hours worked, but not less than three hours. However, the three-hour minimum shall not apply if the commencement of the call back period is within three hours of the employee's regularly scheduled shift.

Section V.5 Overtime

All covered employees are eligible for overtime compensation pursuant to the Fair Labor Standards Act ("FLSA") as amended by this Agreement. By agreement of the Parties, the FLSA work cycle provisions set forth in the FLSA regulations at Title 29, Section 553.230b (also known as "Section 7(k)") will apply. The only hours which will not be counted as hours worked are hours the employee has been excused for sick time.

When any officer is held over for more than fifteen (15) minutes beyond his regularly scheduled work hours in a pay cycle, he shall be paid at a rate of one and one-half (1 and 1/2) times his regularly hourly rate of pay for all hours in excess of a regular number of work hours in a pay cycle, with such pay received in fifteen (15) minute segments. Eight minutes shall be rounded up to fifteen minutes while seven minutes shall be rounded down. Overtime compensation shall be paid on the same date as the regular wages for the pay period. All compensated time shall be considered time worked under this provision.

(a) Voluntary Overtime

In the event a hire back is needed to cover a shift due to a shortage in staffing, the open shift shall be offered to an officer with the same rank on the shift that is vacant prior to officers of another rank (*i.e.*, open sergeant shift is first offered to

sergeants before patrol and open patrol shift is first offered to other patrol officers before offering the patrol shift to a sergeant).

(b) Mandatory Overtime

In order to meet minimum shift requirements, when all efforts to fill a shift voluntarily have been exhausted, the following procedure will be used to fill the required hours:

- (i) Scheduling vacancies will be filled with at notice of at least two schedule pages out from the current schedule page. For the purposes of this Section 5.5(b) only, a "schedule page" is referring to the physical schedule page which encompasses 28 days/two pay periods.
- (ii) The order in which officers will be forced back will begin with the officer having the least amount of banked overtime hours for the budget year and continue in ascending order. This method is to give the officer forced back as much notice as possible, alleviate the potential for officer burnout, and in the spirit of fairness to even the workload of overtime required by any given shifts needs.
- (iii) An effort will be made to fill daytime hours (0600-1800) with a day shift officer, and nighttime (1800-0600) hours with a night shift officer.
- (iv) Investigations and School Resource Officer will be last resort, if all other attempts to fill the shift have been exhausted.
- (v) An officer will not be forced back if they are already scheduled off using benefit time during the shift needing coverage, or if they are off using benefit time on the workday prior to, or after the shift needing coverage.
- (vi) The force back list may also be used for late notice shift shortages caused by sickness or injury. If the current shift requires a specialty position officer acting in a patrol function to be pulled from the patrol shift (Detective/SWAT/SRO), causing the shift to fall below minimums, this force back procedure will be used to fill the shift vacancy created.
- (vii) This procedure may also be utilized to maintain necessary staffing levels as deemed appropriate by management or special events in the Village.

- (viii) Nothing in this Section shall supersede or minimize/limit the rights of the Village pursuant to Sections 2.1 Management Rights, or 7.5 Village Emergency as set forth earlier in this Agreement.

Section V.6 Court Time

Any employee who is required to appear in court on behalf of the Village on off-duty hours shall be compensated for a minimum of three (3) hours pay at the officer's applicable straight or overtime rate of pay, depending upon the circumstances, unless the time extends to his/her regular work shift, in which case the employee will be compensated only for the actual time worked outside his/her regular shift. The minimum compensation for court appearances shall be three (3) hours. The Village may provide a department vehicle if one is available. If no vehicle is available, the Village will pay mileage at the applicable IRS rate, only to the extent that the personal vehicle mileage exceeds that of the round-trip mileage from the affected officer's home to the police department.

Section V.7 Work Breaks

All employees covered by this agreement will be entitled to a thirty (30) minute paid meal period and two fifteen (15) minute paid breaks each shift. Breaks may be taken at the discretion of the supervisor, for reasonable intervals, at reasonable times, and with such other units as the supervisor may deem reasonable. The supervisor shall ensure that adequate coverage exists at all times during break periods. The break period is considered on-duty time, and personnel are considered to be available for any assignment during any break period, including all routine calls within their beat or other beats when applicable.

Section V.8 Shift Selection/Assignment to Permanent Shift

An Employee shall be permitted to exchange shifts with another Employee subject to the approval of the Chief of Police or his designee. Employees shall be permitted to exchange shifts provided:

1. The change does not result in additional overtime compensation being paid to any of the Employees involved in the shift change.
2. The Employee changing shifts will forfeit seniority for vacation picks only on the new shift.
3. For employees with five (5) years of seniority or more as of October 1 of the year in which assignments are being made for patrol positions for the following year on each of the shifts such assignments shall be done by seniority. Prior to the making of the remaining patrol shift assignments for the following year, employees with less than five (5) years of seniority as of October 1 may submit a written request to the Chief or designee setting forth their preference for a given shift, together with the reasons for making the request. While any such requests shall be considered (including the relative seniority of the officers making such requests) by the Chief or designee, the final right to make the remaining shift assignments shall be retained by the Chief in order to ensure that the overall needs of the Department are met. Such assignments shall not be made for arbitrary capricious or discriminatory reasons.

4. Notwithstanding the foregoing, the Chief or designee shall have the right to transfer officers after they have selected or have been permanently assigned to a shift under this Section 5.8 in order to meet the operational needs of the Department (*i.e.*, loss of an employee filling a specialty position, retirement, resignation, injury or other long-term leave, etc.) It is understood that where an officer is transferred to another shift due to departmental needs, the department shall make necessary efforts to effect reassignment of such officer back to his/her former shift as soon as operationally practicable.

Section V.9 Meetings

Any Employee required to be at a departmental meeting during off hours shall be compensated for actual time attending said meeting with a minimum of two hours (2) of compensation, unless the time extends to his/her regular work shift, in which case the employee will be compensated only for the actual time worked outside his/her regular shift.

Section V.10 Officer In Charge Compensation –

In the event that no sergeant or sworn supervisor is on duty, a police officer shall be designated by the Chief of Police or his designee to serve as the Officer in Charge (OIC).

The designated OIC shall earn an additional two dollars (\$2.00) per hour while serving the OIC.

No member of the bargaining unit who is in an acting capacity shall have any authority to respond to any grievances being processed in accordance with this Agreement, nor to take any action or make any statement, agreement, settlement or representation which shall place any duty or obligation on the Village or Police Department while acting under this Section. The Chief of Police or his designee shall determine when an officer will be assigned as an OIC in accordance with this Section.

Section V.11 Compensatory Time

In lieu of overtime pay, an employee may earn compensatory time at a rate equal to one and one-half (1 ½) hours for each overtime hour worked. No more than eighty (80) hours of compensatory time may be carried over from year to year.

Compensatory time shall be granted at such times and in such time blocks as are mutually agreed upon by the employee and his/her supervisor, when requests are received with sufficient notice and provided it is not unduly disruptive to the business operations. Requests for compensatory time must be made at least one (1) day in advance, unless approved by the Employee's supervisor. Officers at their discretion request a cash payment of all or part of their accumulated compensatory time through the payroll system not more than once per fiscal year.

The Chief or the Chief's designee will not unreasonably withhold permission for the utilization of compensatory time off.

Upon termination of employment, an employee shall be paid all accumulated compensatory time at the Employee's then current rate of pay. Additionally, in the first pay period in May, the Village will cash out compensatory time banks to be within the cap levels referenced above at the rates in effect as of April 30 that year.

Section V.12 Lateral Hires

All lateral hires (officers hired off the lateral hire list) will start with no seniority. Lateral hires will complete a 12-month probation period. At the Employer's discretion, lateral hires may begin at salary up to (and including) step 6.

ARTICLE VI UNION SECURITY AND DUES CHECK-OFF

Section VI.1 Dues Deductions

Upon receipt of proper written authorization from an employee, the Employer shall deduct each month's Chapter dues in the amount certified by the Treasurer of the Chapter from the pay of all employees covered by this Agreement who, in writing, authorize such deductions. Such money shall be submitted to the Metropolitan Alliance of Police within fifteen (15) days after the deductions have been made.

Section VI.2 Indemnity

The Metropolitan Alliance of Police shall indemnify and hold harmless the Village, its elected representatives, administrators, agents and officers from and against any and all claims, demands, actions, complaints, suits or other forms of liability (monetary or otherwise) that arise out of or by reason of any action taken or not taken by the Village for the purpose of complying with the provisions of this Article, or in reliance on any written checkoff authorization furnished under any of such provisions, provided that the Village does not initiate or prosecute such action.

Section VI.3 Revocation of Dues

A Chapter member desiring to revoke the dues checkoff may do so by written notice to the Employer at any time upon thirty (30) days' notice.

Section VI.4 Bulletin Boards

The Village shall provide the Chapter with designated space on a bulletin board, for posting of Chapter announcements, seniority roster, and other items of legitimate Chapter business that are non-inflammatory and non-political in nature. The Chief of Police or his designee may remove posted items which he reasonably believes to be inflammatory or political in nature.

Section VI.5 Labor-Management Meetings

The Chapter and the Employer agree that, in the interest of efficient management and harmonious employee relations, meetings will be held between no more than two (2) Chapter representatives and responsible representatives of the Employer. The Village in its sole discretion shall determine its representatives at such meetings. Such meetings will be held at least twice annually, and additional meetings will be held if mutually agreed between the Chapter and the Employer. Such meetings may be requested by either party at least seven (7) days in advance by delivering a written request to the other for a "labor-management meeting" and providing the agenda for such meeting. Such meetings, times and locations shall be limited to:

- (a) discussion on the implementation and general administration of the Agreement;

- (b) sharing of general information of interest to the parties; and
- (c) safety issues.

It is expressly understood and agreed that such meetings shall be exclusive of the grievance procedure. Specific grievances being processed under the grievance procedure shall not be considered at "labor-management meetings," nor shall negotiations for the purpose of altering any or all of the terms of this Agreement be carried out at such meetings.

Attendance at labor-management meetings shall be voluntary on the employee's part. Attendance shall not interfere with required duty time and attendance, if during duty time, is permitted only upon prior approval of the Chief or designee.

ARTICLE VII VACATION

Section VII.1 Eligibility and Allowances

All employees shall be eligible for paid vacation time after the completion of six months of continuous full-time employment.

Section VII.2 Scheduling

Beginning January 8, 2024 and continuing for one year only unless extended by mutual agreement (the "Pilot Period"), employees shall be awarded vacation time by the Village in accordance with Police Department manpower requirements, and on the basis of their seniority. Sign-up for annual vacations will begin on October 15th of each year. Prior to sign-ups, an annual work schedule shall be posted by October 15 of each year. Dates will be selected in increments of no more than two (2) weeks at a time (except for vacations including Christmas or New Year's, which will be selected one (1) week at a time). Two duty days may be added before the beginning of and/or after the end of the two-week period for reasons deemed acceptable and approved by the Chief or designee.

As used in this Section 7.2, a "week" means the period from Monday to Sunday. A "duty day" means a 12-hour period for those who are regularly scheduled to work 12-hour shifts or 8 hours per day for those who are regularly scheduled to work 8-hour shifts.

Vacation selections will be assigned according to seniority by rank, with the most senior employee within rank being assigned the first date. Employees may not sign-up prior to their assigned date unless all employees ahead of them have either signed up or waived their selection. Employees who miss their sign-up date may sign-up at their earliest opportunity, however, no bumping will be allowed. Employees not selecting their vacation during the sign-up period may still request vacation at any time, however, no bumping will be allowed. No vacation days may be taken without prior notice to and approval of the Chief of Police.

Earned vacation days may be taken at any time during the calendar year in which they are earned following the completion of an employee's first 6 months of employment. Subject to the approval of the Chief or his designee, a maximum of fifty (50) hours may be carried over to the following calendar year but the employee must use the vacation days by May 1st, or the vacation

days carried over shall be lost. If an employee does not work the entire time to earn the vacation days after he/she has taken them, the employee shall repay the Village for those vacation days not earned. Subject to Chief's approval, Employees may take two (2) vacations, earned in different years, back-to-back. Employees eligible for more than two weeks of vacation may, at their option and with the approval the Chief or his designee, take one (1) week in daily increments. All other weeks due must be taken in weekly increments, except with prior approval of the Chief or designee when it is consistent with operational needs and does not result in overtime expense.

Further, employees will be allowed to use their regularly scheduled days off before and after scheduled/approved vacation weeks if approved in advance by the Chief or designee and provided it is consistent with operational needs.

Vacations selected during the initial bid period shall have priority over all other leave time and training. Vacations taken in week-long intervals will be allowed to include the officer's regular days off, occurring immediately before and after such vacation.

The following days/events will be staffed in accordance with staffing minimums as determined by management (based on the normal additional normal staffing levels used on Saturdays). Those officers regularly scheduled for the following events will have the responsibility of finding his/her replacement for said shift if the scheduled officer wishes to use any benefit time by trading shifts within said pay period as to not unnecessarily incur more overtime.

Big Wheel Race

St Patrick's Fireworks (Night Shift only)

Intelligentsia Bike Race

Halloween (Night Shift Only)

New Year's Eve (Night Shift Only)

Up to two (2) additional days as deemed appropriate by the Chief for unusual or extraordinary activities in the Village. Heritage Fest will be scheduled per past practice with schedule changes and does not count toward the two exceptions referenced in the prior sentence.

Should the Chief of Police or his designee require additional staffing for said events, an overtime request will be put out in advance for those who wish to volunteer to work said event. In the event no officer picks up the openings requested, the Chief of Police or his designee will utilize the force back language outline in Section 5.5 Section (b).

The Chief may grant an exception to these events when paid time off benefits (including compensatory time) may be used by a covered officer provided a replacement officer is available and agrees to work the requested day off.

The Parties agree to revisit this issue in or around September 2024 to determine if it should continue or revert to prior CBA language and practices beyond the Pilot Period.

Section VII.3 Accrual Schedule

Vacation leave shall be earned during the employment year at the following rates:

- 1st partial year of employment: Accrual rate of 6.67 hours for each full month
- On January 1st of your 1st year of service through 5th years of service: 80 hours
- On January 1st of your 6th year of service through 13th year of service: 120 hours
- On January 1st of your 14th year of service: 160 hours
- On January 1st of your 20th year of service: 168 hours
- On January 1st of your 23rd year of service: 176 hours
- On January 1st of your 24th year of service: 184 hours
- On January 1st of your 25th year of service or more: 200 hours

In the event of separation from employment with the Village, vacation hours will be paid out on a pro-rata earned basis.

Section VII.4 Accumulation

Vacation credit shall not be accumulated during any layoff period, nor shall vacation credit be accumulated during an unpaid leave of absence.

Section VII.5 Village Emergency

In case of an emergency, the Village Manager or Police Chief may cancel and reschedule any or all approved vacation leaves in advance of their being taken, and/or recall any employee from vacation in progress.

ARTICLE VIII HOLIDAY AND PERSONAL TIME

Section VIII.1 Holidays

Effective January 8, 2024, the paid holiday system in effect is replaced with Section 8.2.

Section VIII.2 Holiday Pay

Effective January 8, 2024 the paid time off provisions related to Holidays referenced in Article VIII of the predecessor collective bargaining agreement are no longer applicable. Instead, the affected employees receive an additional payment equal to 4% of their annualized base salary to compensate those employees when they work on holidays. This "Holiday Payment" will be paid by the Employer in a separate payroll check during the last payroll period of November and computed based on the base salary in effect at that time. Employees who have provided timely written notice to the Finance Department prior to November 1 may have their annual Holiday Payment deposited into their deferred compensation account. For partial years worked, the Holiday Payment will be computed based on the number of completed full months actually worked (computed based on a 1/12th per month basis).

Section VIII.3 Holiday Scheduling

- (a) Time off requests on a holiday will be treated the same as any other calendar day of the year, however, staffing minimums will mirror those of a Saturday.
- (a) Employees may use paid time off benefits (including compensatory time) provided a replacement non-probationary officer approved by the Chief of Police or designee is available and agrees to work Christmas, Thanksgiving, and 4th of July by trading shifts within said pay period as to not unnecessarily incur more overtime.
- (b) The remaining holidays (Easter, Labor Day, Memorial Day, and New Years Day) will not require the officer to find a replacement and need only request the benefit time off as any other day per section 7.2 (scheduling).
- (c) The burden of providing a replacement officer, for compensatory time use or a shift trade rest with the employee requesting the time off, at the time the request is made.

ARTICLE IX LEAVE OF ABSENCE

Section IX.1 Absence from Work

All absences from work must be reported to the Supervisor in charge at least two (2) hours prior to assigned working shift. A late report of illness may be accepted and approved by the Chief.

Section IX.2 Sick Leave

Sick leave with pay is provided as a benefit in recognition that people do contract various illnesses from time-to-time, that their financial resources may be diminished in such instances, if pay is discontinued, and that it may not be in their best interest or health or the health of fellow employees for them to work while sick. Any covered officer on sick leave shall take whatever steps are medically necessary to remedy his or her condition and shall not engage in social or commercial pursuits, except that previously approved non-law enforcement employment is allowed, while on sick leave due to his/her own medical condition.

The Chief of Police may require any covered employee to submit written physician verification of treatment and that the employee is fit to return to work for any absence from work for illness of three (3) consecutive workdays or more. The Chief of Police may also require such verification at any time he reasonably believes that an abuse of sick leave is taking or has taken place.

An employee shall be entitled to sick leave due to any of the following:

- (a) Personal illness or physical injury;
- (b) Quarantine of an employee by a physician;
- (c) Illness or injury of an immediate family member of the employee (an immediate family member shall be a spouse, parent, child, brother, sister, mother-in-law and

father-in-law, or domestic partner (as defined in Section 9.5), when that person resides with the employee, or it can be shown that the employee's presence is necessary);

- (d) Any purpose within the guidelines of the Family Medical Leave Act;
- (e) Where an employee is unable to schedule a medical or dental appointment outside normal working hours, he/she may utilize a minimum of two (2) hours sick leave for such purpose, subject to the approval of the Chief of Police.

Section IX.3 Sick Leave Accrual and Usage

The sick leave benefit shall be accrued at a rate of ninety-six (96) hours per year, with a maximum earned amount of 1100 hours. All employees covered by this agreement shall retain all current accrued but unused sick leave. Sick pay shall begin to accrue after six completed calendar months of employment. Sick time may be used in increments of at least two (2) hours.

Employees may transfer credit of earned sick days to another employee with the approval of a committee comprised of two persons designated by the Union (from members of the bargaining unit) and one person designated by the Village. The committee may grant a transfer request only if the following criteria have been met:

- (a) the affected employee has exhausted all of his own sick leave;
- (b) the affected employee has a serious illness as determined by the committee;
- (c) the total of donated hours to any affected employee shall not exceed 320 hours in any calendar year; and,
- (d) any transferring employee has not donated more than forty (40) sick leave hours in any calendar year, and will not, after such transfer, be left with less than 240 hours of accrued sick leave.

Section IX.4 Sick Leave Incentive

Each January, the village will buy back from covered employees all unused sick leave in excess of 1100 hours which had been accrued and earned at the end of the prior calendar year at fifty percent (50%) of the covered officer's straight time hourly rate of pay.

Any Police Employee who retires from employment with the West Dundee Police Department with a minimum of 20 years in good standing shall receive compensation in an amount fifty percent (50%) of all accrued earned unused sick leave, payable at the hourly rate in effect on the last day of the employee's work for the Village. This sick leave compensation may be received in cash, or, at the option of the employee, may be placed in a Retiree Health Savings Account to be created and maintained by the Village for the purpose of paying for health insurance premiums or qualified medical expenses after retirement.

Section IX.5 Conversion of Sick Time Incentive at Retirement

In lieu of the payments specified in Section 9.4, any employee covered under the terms of this Agreement who retires from employment with the Village after having been so employed for a minimum of 20 years in a sworn police position, upon the request of the employee and with the approval of the Chief of Police, may use the employee's accrued sick leave benefit, at a buyback rate of 50%, to advance the date upon which the employee must be physically present performing police responsibilities on behalf of the Village. During the advancement period, which may not exceed six months, the employee will not be required to perform work on behalf of the Village except as may be necessary to provide testimony in any criminal proceeding but will be paid at the regular hourly rate in effect at the commencement of the advancement period. Employees electing to utilize this option will not receive any further benefit under section 9.4, and will not receive, during the advancement period, any other benefits provided in this Agreement, including, but not limited to, vacation benefits as set forth in Article VII, holiday and personal day benefits as set forth in Article VIII, education benefits as set forth in Article X, health insurance benefits as set forth in Article XV, uniform benefits as set forth in Article XVI, and specialty pay as set forth in Article XXII.

Section IX.6 Funeral Leave

Any employee covered by this Agreement shall be entitled to paid funeral leave upon the death of a member of the employee's family as outlined below. The Employee must notify his/her immediate on-duty supervisor as soon as possible prior to taking any time off for funeral leave.

Employee spouse / domestic partner	3 days
Child (natural, adopted, or step)	3 days
Mother, father, sister, brother, mother-in-law, father-in-law	3 days
Sister-in-law / Brother-in-law	2 days
Aunt, Uncle, Grandparent (of employee or spouse)	1 day
Any other household member of Employee residing in household for a minimum of 90 days prior to death not listed above	1 day

In the event of the death of a spouse, domestic partner, child or parent, the Employee may use up to two (2) of his accrued sick days to extend the funeral leave with approval of the Chief or his designee.

For the purpose of this section, a domestic partner is defined as a person of the same sex who has resided in the employee's household and has financial and emotional interdependence with the employee, consistent with that of a married couple, or civil union partnership for a period of one-year and continues to maintain that arrangement.

The Village agrees to comply with the Illinois Family Bereavement Leave Act.

Section IX.7 General Leave of Absence

Any leave of absence for any purpose other than those covered in this Article is subject to Fire and Police Commission rules, and to the approval of the Village Manager, according to Village Policy. Any unauthorized absence from work may be cause for disciplinary action.

Section IX.8 Military Leave

The Village of West Dundee will comply with all applicable State and Federal laws concerning military leave.

Section IX.9 Jury Duty

Police Officers are granted regular compensation for their regular work days when serving on jury duty. Any compensation received as a result of serving on Jury Duty shall be signed over to the Village of West Dundee. A police officer assigned to a shift other than the midnight shift that is called for jury duty on a scheduled work day, but is not selected for service on a jury, shall, if more than three (3) hours are remaining on his/her tour of duty, report for duty within one (1) hour of being released from jury duty. A police officer will be paid his/her regular compensation for such service provided that he/she reports for duty as set forth herein. Should an officer fail to report for duty as specified herein, he shall be paid his/her regular compensation only for those regularly scheduled duty hours during which he was required to appear at the location specified for jury duty.

Section IX.10 Maternity/Paternity Leave

A pregnant employee may work up until the birth of the baby as long as she has her physician's permission and as long as her condition does not interfere with her work. This permission must a) be in writing stating the anticipated date of beginning leave; b) must indicate the employee's ability to perform assigned duties and any medical restrictions upon the employee's activities, and c), be filed with Chief of Police. After the first trimester, a pregnant employee must submit such written permission indicating that the employee is medically able to continue to work, after each appointment with her physician.

A pregnant Employee will utilize, in the following order, available leave time while absent prior to, during or after the birth of her child: unused personal days, accrued vacation, accrued compensatory time and accrued sick leave. An employee will be eligible for a leave without pay, as specified in the Family and Medical Leave Act, after the previously listed time is exhausted.

However, the maximum length of leave time, including accrued paid leave time and leave pursuant to the Family and Medical Leave Act, shall not exceed twelve (12) weeks.

An employee may utilize accrued paid leave time for paternity leave before, during or after the birth of the employee's child, for the purpose of assisting or caring for his child, children or his spouse, (if she is incapacitated for maternity reasons), up to a maximum of four (4) weeks.

Nothing in this Section shall be construed to limit an employee's rights under the federal Family and Medical Leave Act. The Village also will provide reasonable accommodations for employees who are pregnant or have a medical condition related to pregnancy or childbirth.

provided it does not pose an undue hardship to the operations. Requests for reasonable accommodation will be considered on a case-by-case basis.

Section IX.11 Paid Leave for All Workers Act

The Parties agree and acknowledge that the paid time off benefits referenced in this Agreement satisfy any amounts set forth in the Illinois Paid Leave for All Workers' Act, 820 ILCS 192. Therefore, the Parties agree to exercise their right to waive any provisions of that Act as allowed pursuant to Section 192/15(n) of the Act, when applicable and if applicable during the term of this Agreement.

ARTICLE X EDUCATION BENEFITS

Section X.1 On-Duty Training

Police Employees attending training sessions away from the Police Department shall either be offered transportation to and from the training location, if available, or shall be paid the prevailing rate mileage allowance for the use of their own vehicle. An employee who attends a police-related seminar, upon the direction of the Chief, on his own time will receive one (1) hour pay for each hour spent in said seminar.

Section X.2 Scheduling of On-Duty Training

Employees assigned to training shall be given as much notice as practicable, through posting of shift schedules and/or individual notices or memoranda to the affected employees.

Section X.3 Educational Reimbursement

The Village will make reimbursement for college tuition, required books or class materials for accredited courses directly related to the employee's position with the Village, (or necessary prerequisites for a program of study related to the employee's position with the Village), as set forth below:

Grade of A - 90% reimbursement Grade of B - 80% reimbursement Grade of C - 75% reimbursement

Employees who seek reimbursement for a particular course must, prior to enrolling in said course, obtain the approval of the Chief that the course is eligible for reimbursement, and provide any information or documentation necessary to verify that the course is eligible for reimbursement. Tuition reimbursement pursuant to this section shall not exceed \$2000 per year or \$8000 lifetime per officer.

Section X.4 Travel and Meeting Expense Allowances

The Village shall, upon the Chief's approval, reimburse Police Employees for professional approved conferences and training classes/seminars lasting five (5) or more hours, including meals and lodging for such training and/or seminars.

A Police Employee wishing to attend a conference or gathering at his expense must receive a specific approval of the Chief of Police to be away from his or her regular duties.

Any Police Employee attending any conference, meeting, seminar or convention and being reimbursed by the Village is to submit paid receipts for reimbursable expenses. The Village Treasurer will not reimburse expenses which are not documented, or which are unreasonable.

Section X.5 Probationary Police Officers and Reimbursement of Training Costs

- (a) Satisfactory completion of twelve (12) months of probationary employment, following graduation from the police academy, is required of all probationary police officers before a regular appointment to said position is made.
- (b) Within the first twelve (12) months of employment, each probationary police officer who has not already done so must attend and satisfactorily complete a Basic Law Enforcement course of instruction, of which the content, duration, and criteria for receiving a final passing grade must and shall be approved and certified by the Illinois Local Governmental Police Officers Training Board. The cost of the employee's participation in that course includes training, uniforms, tuition and travel or other expenses paid by the Village on behalf of the employee for this purpose. The Village will pay that amount on behalf of the probationary police officer, and that payment shall be considered a "Loan Amount" to the probationary police officer which must be repaid by the employee at the time of resignation if the employee's employment with the Department ends before completion of twenty-four (24) months of service, and subject to the remaining terms of this Section 10.5.
- (c) The employee may be required to enter into a repayment agreement to reflect the employee's receipt of the Loan Amount pursuant to this Section 10.5 and applicable law. The Union agrees to cooperate with the Village in the event it becomes necessary to collect any remaining portion of the Loan Amount from the affected employee.
- (d) Each probationary police officer who has not already done so must, as soon as is practically possible following initial appointment, successfully complete the mandatory course of instruction of firearms use and proficiency, as well as the mandatory physical fitness proficiency standards tests. Said courses are those which are approved and certified by the same training board mentioned above.
- (e) In the event that the probationary police officer chooses to leave the employment of the Village of West Dundee Police Department prior to completing a total of twenty four (24) months of service with the Village, he or she will reimburse the Village 100% of the Loan Amount advanced for the officer's attendance at the Basic Law Enforcement, the firearms courses and physical fitness tests (tuition, travel and incidental expenses, excluding any reimbursement the Village may receive), equipment, specialized training and uniforms costs and related expenses incurred by the Village on behalf of the officer.

- (f) Should a probationary police officer resign after six (6) months of service but before completion of twenty-four (24) months of service, he/she will repay the full Loan Amount (as defined earlier) at a prorated amount of the costs described in paragraph B of this Section, with a credit of 1/24th of the total amount for each month of service.
- (g) In the event that the probationary police officer, has his or her probationary period extended, or is granted a leave of absence during the period covered by this Agreement, the period set forth in this Section shall be extended accordingly.
- (h) No repayment of the Loan Amount is due if the employment relationship ends because of an undisputed disability of employee (which cannot be reasonably accommodated), layoff, or failure to satisfy the probation period (through no fault of the employee when the employee makes a good faith effort to comply). no repayment of the Loan Amount will be required.
- (i) The full and complete repayment of the Loan Amount will be deducted from the employee's final paycheck (even if it exceeds 15% of the amount of the final check) and the remaining balance of the Loan Amount will be paid to the Village by the Employee within thirty (30) days after the undersigned has left the employment of the Village. The Village reserves the right to pursue attorney fees and court costs incurred in the enforcement of this Section. Further, the parties agree and acknowledge that the Village may notify any prospective employer of the employee's repayment obligation unless this Loan repayment obligation is paid in full and in a timely manner.

ARTICLE XI GRIEVANCE PROCEDURE

It is mutually desirable and hereby agreed that all grievances shall be handled in accordance with the following steps. For the purposes of this Agreement, a grievance is any dispute or difference of opinion raised by an employee or the Chapter against the Employer involving the meaning, interpretation or application of the provisions of this Agreement. The parties agree that the discipline of written reprimands shall be subject to the jurisdiction to the grievance procedure.

The parties agree that disciplinary suspensions shall not be subject to the grievance procedure. Any time period provided for under the steps in the grievance procedure may be extended or contracted by mutual agreement.

STEP ONE: The employee, with or without a Chapter representative, may take up a grievance with the employee's immediate supervisor by filing said grievance in writing within ten (10) calendar days of its occurrence or of the date on which the affected employee became aware of the occurrence. The supervisor shall then attempt to adjust the matter and shall respond in writing within ten (10) calendar days after such discussion. If the grievance is adjusted at Step One, the supervisor shall notify the Chief and Chapter representative in writing within ten (10) days thereafter the nature of the grievance and its resolution.

STEP TWO: If not adjusted in Step One, the grievance shall be presented in writing by the grievant to a command officer designated by the Chief of Police within ten (10) calendar days following the receipt of the supervisor's answer in Step One. The command officer shall attempt to adjust the grievance as soon as possible, and therefore will schedule a meeting with the employee, his immediate supervisor or Shift Commander, and Chapter Representative within ten (10) calendar days after receipt of the grievance from the grievant. The command officer shall render a written decision, based on the supplied information during the meeting, and shall deliver said decision to the grievant within ten (10) calendar days of the meeting.

STEP THREE: If not adjusted in Step Two, the grievance shall be presented in writing by the grievant to the Chief of Police within ten (10) calendar days following the receipt of the command officer's answer in Step Two. The Chief of Police shall attempt to adjust the grievance as soon as possible, and therefore will schedule a meeting with the employee, his immediate supervisor or Shift Commander, and Chapter Representative within ten (10) calendar days after receipt of the grievance from the Chapter following Step Two. The Chief of Police shall then render a written decision, based on the supplied information during the meeting, and shall deliver said decision to the grievant, within ten (10) calendar days of the meeting. Written communication can replace a meeting between the Chief of Police and the employee involved in the grievance if the parties mutually agree. Such communication must be presented to the Chapter Representative to be forwarded to the Chief of Police.

STEP FOUR: If the grievance is not adjusted in Step Three, the grievance shall be submitted by the grievant in writing to the Village Manager or his designated representative within five (5) calendar days of the receipt from the Chief of Police his response in Step 3. A meeting shall be held at a mutually agreeable time and place and participants shall discuss the grievance and hopefully come to an equitable solution. If a grievance is settled as a result of such meeting, the settlement shall be reduced to writing and signed by the parties. If no settlement is reached, the Village Manager, or his designated representative, shall give the grievant the Employer's answer in writing within ten (10) calendar days following their meeting.

STEP FIVE:

- (a) If the Chapter is not satisfied with the decision of the Village Manager, the Chapter may appeal the grievance to arbitration by notifying the Village Manager in writing within ten (10) calendar days after receipt of the Village Manager's response in Step 4. Grievances will not be submitted for arbitration unless it is sponsored or backed by the Chapter. Within ten (10) calendar days of receipt of such request the Chapter and the Village shall jointly submit the dispute to the Federal Mediation and Conciliation Service (FMCS). If the Federal Mediation and Conciliation Services is unavailable or unable to hear this dispute then the parties shall jointly submit the dispute to the American Arbitration Association and shall request a panel of five (5) arbitrators, with a business office in Illinois. If agreement cannot be reached in the selection of an arbitration service, the choice shall be determined by a coin toss. Each party retains the right to reject one panel

in its entirety and request that a new panel be submitted. Both the Village and the Chapter shall have the right to strike two (2) names from the panel. The order of alternate striking shall be determined by a coin toss, with the losing party striking the first and third names. The person remaining shall be the arbitrator. The arbitrator shall fix the time and place of the hearing which shall be as soon as possible after his selection subject to the reasonable availability of Chapter and Village representatives.

The Arbitrator shall be notified of his selection and shall be requested to set a time and place for the hearing subject to the availability of Chapter and Village representatives.

The Village and Chapter shall have the right to request the Arbitrator to require the presence of witnesses or documents. Both parties may retain the right to employ legal counsel.

- (b) The power of the arbitrator shall be limited to the interpretation and application of the written terms of this Agreement. In no event may the terms and provisions of the Agreement be deleted, modified, or amended by the arbitrator. He shall consider and decide only the specific issue raised by the grievance as originally submitted in writing to the Village and shall have no authority to make his decision on any issue not so submitted to him. The arbitrator shall submit in writing his decision within thirty (30) calendar days following close of the hearing or submission of briefs by the parties, whichever is later, unless the parties agree to an extension. In the event the arbitrator finds a violation of the Agreement, he shall determine an appropriate remedy. The decision of the arbitrator shall be final and binding on the parties. No decision or remedy of the arbitrator shall be retroactive beyond the period specified in Step 1 of this grievance procedure.

In the case of a grievance concerning an error in scheduling where the grievance is upheld, the Village will compensate the employee affected for money lost because of said error in scheduling.

Section XI.2 Fees and Expenses of Arbitration

The fee and expenses of the arbitrator and the cost of the written transcript, if requested by both parties, shall be divided equally between the Village and the Chapter provided, however, that each party shall fully bear the expense of preparing and presenting its own case including the costs of witnesses and other persons (not employed by the Village) it requires to attend the arbitration. Should only one party request a transcript, that party shall pay for the cost of the transcript.

Section XI.3 Forms

The MAP Grievance form that is included as Appendix E will be the designated for to use for the filing of grievances.

Section XI.4 General Rules

- (a) Any decision not appealed by the employee, or the Chapter as provided within the time limits specified in each step shall be considered settled on the basis of the latest decision and shall not be subject to further appeal. Any grievance not answered within the time limits specified in each step may be appealed to the next step. However, time limits at each step may be extended by mutual written agreement of the Chapter and the Village.
- (b) No matter or action shall be treated as a grievance unless a grievance is filed in accordance with this Article.

Section XI.5 Notice of Union Representation

The Chapter shall certify to the Village the names of those employees who are designated as representatives (stewards) for each shift and the Investigations Division. These employees shall be the only employees authorized to function as representatives/stewards on each respective shift and division, other than Chapter Officers who are assigned to the respective shifts or Division.

ARTICLE XII NON-DISCRIMINATION

Section XII.1 Non-Discrimination

In accordance with applicable law both the Village and the Chapter agree not to discriminate against any employee covered by this Agreement in a manner which would violate federal or state laws on the basis of race, sex, creed, religion, color, marital status, age, national origin, political affiliation and/or beliefs, mental and/or physical handicaps, or union membership.

A violation of Section 12.1 shall be subject to the grievance procedure up and through Step 3 but shall not be subject to arbitration under the grievance procedure.

Section XII.2 Chapter Activity

The Village and Chapter agree that no employee shall be discriminated against, intimidated, restrained or coerced in the exercise of any rights granted by law or by this Agreement, or on account of membership or non-membership in, the Chapter.

ARTICLE XIII DISCIPLINE

Section XIII.1 Procedure of Discipline

If the Village has reason to discipline an employee, it will make every appropriate effort to do so in a manner that will not unduly embarrass the employee before other fellow employees or members of the public.

In order to maintain public confidence in and ensure the absolute integrity of the West Dundee Police Department, all complaints regarding an employee's alleged improper behavior or wrongdoing will be investigated, regardless of the source of the complaint. All initial complaints will be taken by any member of the West Dundee Police Department, who will make a written record of the complaint and report it to the appropriate supervisor, according to West Dundee

Police Department policy. Covered employees shall be notified promptly when the Chief of Police has determined that an internal investigation has been completed. No employee will be disciplined based solely upon a single anonymous, unverified allegation of wrongdoing.

Section XIII.2 Jurisdiction of Police and Fire Commission

Disciplinary action and/or termination are subject to the jurisdiction of the Board of Fire and Police Commissioners according to the applicable State law. Notice of disciplinary action which does not come before the Board of Fire and Police Commissioners shall be provided in writing to the employee. Nothing in this article, however, shall be construed in such a manner as to make the reprimand, suspension or discharge of a probationary employee the subject of a hearing before the Board of Fire and Police Commissioners, or part of the Grievance Procedure. Nothing in this section shall be construed to extend the jurisdiction of the Board of Fire and Police Commissioners.

Section XIII.3 Use of Reprimands and Discipline

If, from the date of an officer's receipt of a written reprimand, the officer has not received an additional reprimand or discipline for the same or substantially similar offense during the following twenty-four (24) months, said written reprimand shall not be utilized by the Village against the affected officer for disciplinary purpose, however, the exception to this would be a substantiated formal complaint resulting in a written reprimand dealing with excessive force or harassment which could be utilized by the Village indefinitely. If, from the date of an officer's receipt of an oral reprimand, the officer has not received an additional reprimand or discipline for the same or substantially similar offense during the following twelve (12) months, said oral reprimand shall not be utilized by the Village against the affected officer for disciplinary purposes.

Section XIII.4 Personnel Files

The City agrees to abide by the lawful requirements of the Illinois Compiled Statutes, 820 ILCS 40/01 et seq. The Employer's personnel and disciplinary history files relating to any employee shall be open and available for inspection by the affected employee during regular business hours with seven (7) working days' notice.

ARTICLE XIV INVESTIGATIONS CONCERNING OFFICERS

Section XIV.1 Right to Investigate

The Village agrees to abide by the lawful requirements of the Illinois Compiled Statutes, 50 ILCS 725/1 et seq.

Section XIV.2 Right to Representation

All employees covered by this Agreement who are requested to submit to an interview in which allegations of misconduct might result in discipline in which the employee being interviewed is alleged to have committed some act of misconduct which might be subject to discipline, shall be entitled to representation. Said employee shall be entitled to be represented by a Union representative employed by the West Dundee Police Department. The parties recognize that a

representative present during such an interview does not have the right to present evidence or argument on behalf of the affected employee, and that neither the affected employee nor the representative may interrupt or interfere with the interview except to the extent allowed by state law. Interviews shall be scheduled at times and places mutually agreeable between the parties, and neither party shall conduct themselves so as to unduly delay the completion of any requested interview.

Employees required to submit to an interrogation shall be entitled to all rights accorded under the Uniform Police Officers Disciplinary Act, 50 ILCS 725/1 *et seq.*

Section XIV.3 Global Positioning Units/Body Worn Cameras/Surveillance of Employees

Global Positioning Satellite Units may be used by the Village for legitimate law enforcement and public safety purposes, including evidence in any disciplinary investigation or disciplinary hearing against any member, provided that stored GPS data may not be used as the sole source to initiate any investigation, but may be used as a supplemental investigative tool following the initiation of an investigation. If the Employer is in possession or control of relevant surveillance (video, photographic, audio, GPS, or other recorded surveillance) of an employee, prior to the employee submitting to Interrogation, as defined in Section 2(c) of the Uniform Peace Officers' Disciplinary Act (50 ILCS 725/2(c)), regarding the subject matter observed in the surveillance, the Employer will give the employee notice of the existence of said surveillance material(s). The Employer's notice will be included along with other information required in the written notice required by the Uniform Peace Officers' Disciplinary Act.

The Employer will allow the employee and Union a reasonable opportunity to observe the employee's own surveillance video (with a member of management present) prior to the employee's Interrogation during a Formal Investigation conducted pursuant to UPODA, subject to any applicable restrictions, requirements and provisions as set forth in the Illinois Body Worn Camera Act. Provided, however, the Employer reserves the right to decline an employee's request to review his own surveillance video prior to their Interrogation when there are unique circumstances involved in the alleged misconduct that could influence the outcome of the investigation if viewed in advance by the officer. Any determination about whether the Employer has a right to deny access to the employee's own video (if any) will be made on a case-by-case basis with consideration of all of the circumstances involved. If there is a dispute about any admission or confession obtained from an Interrogation where such notice and opportunity to view the employee's own BWC video in advance may be challenged by the Union in an arbitration hearing (and within the discretion of the trier of fact).

The Union and the Village agree to the West Dundee Police Department Policy governing the Use of Body Worn Cameras. The Village agrees not to modify the policy without negotiating with the Chapter first over the contents of the policy to the extent that the change involves a mandatory subject of bargaining as construed by law.

ARTICLE XV HEALTH INSURANCE, DENTAL, AND LIFE INSURANCE

Section XV.1 Health Insurance

The Village shall continue to make health and dental insurance available to all employees covered by this agreement same or relatively similar to the coverage which is currently in effect. The Village's right to change insurers, plans and employee contributions is subject to the restrictions set forth below. Employees covered by this agreement shall contribute to the premium cost of health and dental insurance at the same rate of all other employees of the Village per the following guidelines:

Following the first payroll period after the ratification of this agreement:

Coverage Type	Per Payroll Deduction Amount of the Premium
PPO, HMO, HSA – Single Coverage	10%
PPO, HMO, HSA– Employee and Child(ren)	20%
PPO, HMO, HSA – Employee and Spouse	20%
PPO, HMO, HSA – Full Family	20%

	Total Cost of Insurance			Employee Contributions per Pay Period			Annual Employee Contributions		
	HMO	PPO	H.S.A.	HMO	PPO	H.S.A.	HMO	PPO	H.S.A.
Single (10%)	\$ 8,209.44	\$ 11,952.84	\$11,908.20	\$31.57	\$ 45.97	\$ 45.80	\$ 820.82	\$ 1,195.22	\$1,190.80
Employee & Child(ren) (20%)	\$15,576.00	\$ 22,678.56	\$22,247.92	\$ 119.82	\$174.45	\$171.14	\$ 3,115.32	\$ 4,535.70	\$4,449.64
Employee & Spouse (20%)	\$15,877.08	\$ 23,116.68	\$22,629.64	\$ 122.13	\$177.82	\$174.07	\$ 3,175.38	\$ 4,623.32	\$4,525.82
Full Family (20%)	\$ 23,243.76	\$ 33,842.16	\$31,969.24	\$ 178.80	260.32	\$245.92	\$ 4,648.80	\$ 6,768.32	\$6,393.92

The Village will continue to make a contribution into employees' HSA Accounts based on the cost differential between the PPO Plan and the HSA Plan. In no instances will contributions from the Village exceed \$1,500 for Single Coverage and \$2,500 for all other Coverage types. If the total costs of the HSA Coverages (including the base Village contribution amounts) exceed the total costs of the PPO Plan, the Village's contribution will be adjusted downward to equalize the net costs of the PPO and HSA Plans.

HSA contributions will be based on the annual July 1 renewal date and the Village's contributions will be made into the employees' accounts on July 1 and December 1 of each year. Payments will be made in 50% equal installments. New employees hired mid-year and joining the HSA Plan will be required to wait until the next installment date to receive their contributions. Employees terminating mid-year will not be required to repay the Village for any contributions already received.

For the program years and the three subsequent program years, the Village will contribute an increase based on the prior year's program of 5%. If the Village is unable to obtain similar coverages for 5% or less, the Village is committed to working with representatives of this unit as well as representatives from other Departments to discuss possible changes in coverages, insurers, or programs. The Village will present these options for a vote by all Village employees to determine employee preferences. The votes of employees covered by this agreement will be combined with those of other Village employees, and the resulting outcome will be the

determining factor for any changes made to the health insurance plan and amounts of employee contributions.

Section XV.2 Life Insurance

The Village shall supply each Employee with term life insurance with a face amount equal to \$50,000.00.

Section XV.3 Continuation of Benefit

When an employee is killed in the line of duty, the Village will provide health coverage benefits as set forth in 820 ILCS 320/10.

Section XV.4 Waiver of Health and/or Dental Insurance

A police officer eligible for health and dental coverage through the Village insurance may waive such coverage in accordance with this Section. Police officers who waive health insurance, or health and dental insurance coverage through the Village in accordance with this Section will receive a "waiver payment" as provided in this Section of \$1,000. Prior to making a waiver of health insurance, the police officer must show proof of health insurance coverage from another source. Dental insurance may be waived without proof of other dental insurance coverage. The "waiver payment" will be made by separate check after the close of the insurance year during which such coverage has been waived.

ARTICLE XVI UNIFORM BENEFITS

Section XVI.1 Benefits

Employees starting employment with the Police Department shall be equipped with required uniforms and equipment by the Village in accordance with the list described in APPENDIX C which is attached hereto and part of hereof. Equipment and uniforms issued to employees will be returned to the Village upon their separation of service with the Village. Upon ratification of this agreement, the Village agrees to authorize Ray O'Herron as a vendor for equipment for the department.

All covered employees shall be entitled to uniform and equipment replacement pursuant to the existing "quartermaster" system. Covered employees are entitled to up to \$700.00 in expenditures per fiscal year for uniforms and equipment items under the quartermaster system. Officers assigned to plainclothes duty shall be entitled to reimbursement up to \$700.00 per year for the purchase of clothing or equipment appropriate to the affected officer's duty assignment. Officers will also be authorized to utilize the equipment and uniform allowance for range fees (up to \$50 per fiscal year) and dry cleaning of uniforms (up to \$100 per fiscal year), subject to submittal of receipts during the last 2 weeks of January and July each year. Reimbursements at this time will be limited to receipts dated within the previous 6 months.

Officers assigned to a specialty position such as KCART, SWAT, and Major Crimes Task Force, may request reimbursement above and beyond the \$700 by submitting a written request to the Chief of Police (or his designee). Approval will be based on the uniform needs of the specialty position as well as sufficient funding available in the operational budget.

Section XVI.2 Damage to Uniforms or Property

Any issued uniform or issued equipment damaged in the line of duty or during training, where the damage is not a result of the negligence of the Police Employee involved, shall be repaired or replaced by the Village at its expense. Damage or destruction of eyeglasses or contact lenses, occurring on duty, shall be replaced or repaired by the Village at its expense, up to a maximum of \$250. Damage or destruction to watches, occurring on duty, shall be repaired or replaced by the Village at its expense up to a maximum of \$50.00. Affected employees must provide receipts for repair or replacement of items pursuant to this Section. Payment pursuant to this Section shall not include reimbursement for eye examinations required prior to the replacement of eyeglasses or contact lenses.

Section XVI.3 Vests

The Village agrees to provide each covered employee a protective vest, at the Village's expense. The Village agrees to replace said vest after five (5) years of continuous use (or pursuant to the manufacturer's recommendation), at no cost to the Employee. The Chief of Police reserves the right to approve the vendors for replacement vests. The Chief of Police reserves the right to promulgate rules and regulations relating to the use and wearing of vests pursuant to this Section.

ARTICLE XVII OFF DUTY EMPLOYMENT

Section XVII.1 Employment Outside Department

The Chief of Police may restrict off duty employment in the best interest of department operations. Patrol Employees may be allowed to engage in off duty employment, subject to the prior written approval of the Chief of Police or his designee, which shall not be unreasonably denied.

Section XVII.2 Extra Duty Details

When the Department posts an extra duty detail, it will be filled by Employees on a first come first serve basis. Any requests of the Police Department for extra duty details will be forwarded to the Chapter Representative and the Chief of Police. Any Employee who accepts an extra duty assignment and later rejects or declines it is responsible for finding a replacement. Failure to do so will result in an Employee being ineligible for extra duty assignments for six (6) months. Any employee who works an extra duty detail shall be paid one and one-half (1 ½) times the employee's current hourly rate of pay for all hours worked on the detail.

ARTICLE XVIII SENIORITY

Section XVIII.1 Seniority

Unless stated otherwise in this Agreement, seniority for the purpose of this Agreement shall be defined as an employee's length of continuous full-time service with the Village since the employee's last date of hire. Within each rank, length of continuous service in that rank since appointment to the rank shall determine relative seniority between members of that rank, rather than the employee's total service with the Village.

Section XVIII.2 Determination of Seniority

Seniority shall be determined by Police Employees length of service within as described in Section 18.1. Time spent in the armed forces or on military leave of absence, time absent from work on family medical leave, sick leave, and time absent from work due to work-related duty disability, not on disability pension, shall be included. Time absent from duty when on suspension, when absent without authorization or for any other purpose shall not be included.

Section XVIII.3 Maintenance of Seniority List

A current and up-to-date seniority list showing the names and length of service of each Police Employee shall be maintained for inspection by members and shall be updated on an annual basis. This list is contained in Appendix B which is attached hereto and made part hereof.

Section XVIII.4 Forfeiture of Seniority

An employee shall forfeit his seniority rights upon separation from service due to dismissal, layoff or retirement. Accumulated seniority rights shall be reinstated provided that any employee who has a break in service of more than one year must successfully complete a retraining program prescribed and approved by the Chief of Police at the Village's expense, and only under the following conditions:

- (a) An employee retires due to disability and is later certified by the Police Pension Board to be capable of resuming his duties and is returned to work by the Chief of Police; or
- (b) An employee is dismissed and later reinstated by a court of competent jurisdiction; or
- (c) An employee is separated due to a layoff or reduction in force and is later reinstated under conditions provided in the Illinois Compiled Statutes.

ARTICLE XIX SAVINGS CLAUSE

Section XIX.1 Savings Clause

In the event any Article, Section or portion of this Agreement should be held invalid and unenforceable by any board, agency or court of competent jurisdiction, such decision shall apply only to the specific Article, Section or portion thereof specifically specified in the board, court or agency decision; and upon issuance of such a decision, the Village and the Chapter agree to notify one another and to immediately begin negotiations on a substitute for the invalidated Article, Section or portion thereof.

ARTICLE XX ENTIRE AGREEMENT

Section XX.1 Entire Agreement

This Agreement constitutes the complete and entire Agreement between the parties and concludes collective bargaining between the parties for its term. This Agreement supersedes and cancels all prior practices and agreements, whether written or oral, which conflict with the express terms of this Agreement. If a past practice is not addressed in this Agreement, it may be changed by the Employer as provided in the management rights clause, Article II. The parties acknowledge that during the negotiations which resulted in this Agreement, each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law or ordinance from the area of collective bargaining, and that the understanding and agreements arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement.

Section XX.2 Ratification and Amendment

This Agreement shall become effective when ratified by the Village Board and the Chapter and signed by authorized representatives thereof and may be amended or modified during its term only with mutual written consent of both parties.

No benefits terms or other conditions of employment shall be considered to be retroactive unless specifically provided in this collective bargaining agreement.

ARTICLE XXI LIGHT DUTY

Section XXI.1 Work Schedule for Light Duty

Any Employee who is injured or is otherwise unable to perform his full-time duty will be allowed, with a written physician's approval, the opportunity to work existing and available light duty, subject to the Chief's approval and in accordance with the needs of the Department, and according to the applicable departmental policy. Light duty shall consist of those tasks assigned by the Chief of Police. When more than one employee seeks a light-duty assignment, preference for such assignment may be given to an employee who was injured in the line of duty over another whose inability to perform regular duties did not arise from the performance of his duties. Nothing in this section shall be construed to create an obligation on the Village to create or designate work which might be considered to be "light duty." The Village and the Chapter agree that there shall be no pyramiding of benefits of light duty assignments with workmen's compensation or other disability benefits.

ARTICLE XXII SPECIALIST POSITIONS COMPENSATION

Section XXII.1 Specialty Pay

Specialist positions are not to be construed as rank, but rather are job assignments which involve additional duties and responsibilities over and above those for police employees generally and for which an employee receives compensation in addition to the salary attached to his rank. The compensation for specialist positions shall be in accordance with the following schedule:

(SWAT/Mobile Field Force):	\$1,500.00 per year, to be paid in equal installments on May 01 and November 01 of each year.
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Field Training Officer:	One hour of pay at straight time for each occurrence (defined as five (5) hours or more per any one shift), effective upon execution of this Agreement.
Detective	\$1000.00 per year, to be paid in two equal installments on May 1 and November 1 of each year. This will be increased to \$2,000 per year beginning on May 1, 2024. • Payments will be computed on a pro-rate basis for a partial year (based on the previous six months) served in this capacity.

ARTICLE XXIII GENERAL PROVISIONS

Section XXIII.1 Immunization and Inoculations

The Employer agrees to pay all expenses for inoculation or immunization shots for the employee and for members of an employee's family when such becomes necessary as a result of said employee's exposure to contagious diseases where said employee has been exposed to said disease in the line of duty.

Section XXIII.2 Killed in Line of Duty Benefit

The Employer agrees to reimburse up to \$15,000.00 to the immediate family of any police employee who is killed in the line of duty. This reimbursement is an expression of financial support to the family to offset funeral and burial expenses of the employee.

Section XXIII.3 Medical Evaluations

Prior to participation in the annual employee fitness test, employees will be encouraged to undergo annual medical screening and evaluation to ensure the employee's medical capacity to undergo the physical fitness tests without undue risk. The medical screening and evaluation will be conducted by a physician of the employee's own choosing and will be paid for by the employee's health insurance as provided for in the Village's hospitalization plan. Since the test is not mandatory, payment of any cost not covered by the insurance plan will be the responsibility of the Employee.

Section XXIII.4 Fitness Examinations

If there is any question concerning an employee's fitness for duty, or fitness to return to duty after an absence, the Village may require that the employee have an examination by a qualified and licensed physician or other appropriate medical professional selected and paid by the Village. Such an examination shall be required for any employee who has been performing other than his regular duties or has been on administrative leave following a "critical incident," (e.g., officer-involved shooting).

A dispute related to disciplinary action arising out of this Section 23.4 may be the basis a grievance pursuant to the Grievance Procedure referenced in this Agreement at Article XI.

Section XXIII.5 Employee Fitness

Participation in fitness tests will be voluntary. An employee desiring to take the fitness test must sign a waiver of claims against the Village arising from participation in the test. Those employees who take the POWER (Peace Officers Evaluation Report) test and pass shall receive \$300.00. Those employees who pass and meet standards at one age category younger (decade) shall receive \$400. Those employees who pass and meet standards two age categories younger (only applicable to 40 and over age categories) shall receive \$500. There will be no pyramiding of payments in a calendar year and the maximum compensation per calendar year cannot exceed \$500.

Section XXIII.6 Residency

The parties recognize that the West Dundee Board of Fire and Police Commissioners have currently established a residency limit of 35 miles from the Village of West Dundee. The parties agree that, should the Board of Fire and Police Commissioners act to reduce the current residency limit for current members of the bargaining unit, the Chapter may reopen negotiations over the issue of residency requirements for bargaining pursuant to the provisions of the Illinois Public Labor Relations Act.

Section XXIII.7 Solicitation

While the Village acknowledges that bargaining unit employees may conduct solicitation of West Dundee merchants, residents or citizens, the bargaining unit agrees that no bargaining unit employee will solicit any person or entity for contributions on behalf of the West Dundee Police Department or the Village of West Dundee.

Bargaining unit members agree that the Village name, shield or insignia, communication systems, supplies and materials will not be used for solicitation purposes. Solicitation for the benefit of the collective bargaining representative by bargaining unit employees may not be done on work time or in a work uniform. The bargaining unit employees agree that they will not use the words "Village of West Dundee Police Department" in their name or describe themselves as representing the "Village of West Dundee." Bargaining unit members shall have the right to explain to the public, if necessary, that they are members of an organization providing collective bargaining, legal defense and other benefits to all patrol-rank and sergeant police officers employed by the Village.

The foregoing shall not be construed as a prohibition of lawful solicitation efforts by bargaining unit members directed to the general public. Each party hereto agrees that they will comply with all applicable laws regarding solicitation.

This Section 23.7 does not apply to the solicitation efforts of the Metropolitan Alliance of Police or any of its agents who are not bargaining unit employees.

Section XXIII.8 Drug and Alcohol Testing

The parties agree to employee drug and alcohol testing procedures as set forth in Appendix D, attached hereto and incorporated as part of this Agreement.

Section XXIII.9 Part Time Officers

Until such time that the Village employs nineteen full-time police officers in bargaining unit positions, the Village shall be allowed to employ a maximum of five part-time officers. When the Village employs nineteen or more full-time police officers in bargaining unit positions, the Village may employ more than five part-time officers, provided that the annual number of hours worked by the part-time officers does not exceed 20% of the regular scheduled hours for the full-time bargaining unit officers.

Any part-time officers hired must be trained as full-time officers in state academies or must be trained pursuant to ILCS 705/8.2 and successfully complete the Department Field Training Program. The use of part-time officers will be subject to department policy as determined by the Village. The Village agrees to meet with the Union for the purposes of discussing such policy.

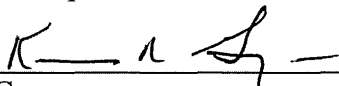
**ARTICLE XXIV
TERMINATION**

Section XXIV.1 Termination

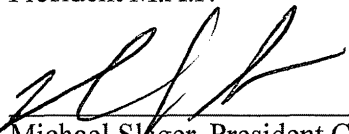
This Agreement shall be effective as of the day after it is executed by both parties and shall remain in force and effect until April 30, 2026. It shall be automatically renewed from year to year thereafter unless either party shall notify the other in writing at least sixty (60) days prior to the anniversary date and not earlier than one hundred twenty (120) days that it desires to modify this Agreement. In the event that such notice is given, negotiations shall begin no later than sixty (60) days prior to the anniversary date. In the event that either party desires to terminate this Agreement, then the benefits as described herein shall remain in full force and effect with no diminution up to and until a new collective bargaining agreement shall be executed, and the party wishing to terminate shall give notice at least ninety (90) days prior to the expiration date hereof and not earlier than one hundred twenty (120) days.

Executed this 14th day of NOVEMBER, 2023, after receiving official approval by the Village President and Village board and ratification by the Chapter's membership.

Metropolitan Alliance of Police, West
Dundee Chapter # 153

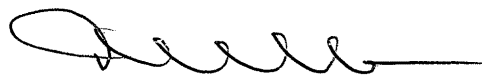


Keith George
President M.A.P.

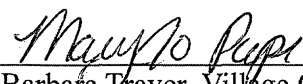


Michael Slager, President Chapter #153

Village of West Dundee, Illinois



Christopher Nelson
President Village of West Dundee



Barbara Traver, Village Clerk

APPENDIX A

SALARY SCHEDULE

Charts below reflect existing pay levels as of April 30, 2023 (Converted to 2184 hours a year), with a 3.75% increase on May 1, 2023, a 3.25% increase on May 1, 2024, and a 3% increase on May 1, 2025. These annual salaries reflect 2184 hours worked annually.

Police Officer	Hire/Step 1	Step 2	Step 3	Step 4	Step 5	Step 6	Step 7	Step 8
Current	68,456	72,712	76,989	81,265	85,543	89,775	94,074	98,352
2023-2024	71,023	76,193	81,362	86,532	91,701	96,871	102,040	N/A
2024-2025	73,331	78,669	84,006	89,344	94,681	100,019	105,357	N/A
2025-2026	75,531	81,029	86,527	92,024	97,522	103,020	108,517	N/A

Sergeant	Hire/Step 1	Step 2	Step 3	Step 4	Step 5	Step 6
Current	101,493	105,258	109,045	112,808	116,575	120,340
2023-2024	105,299	110,187	115,076	119,964	124,853	N/A
2024-2025	108,721	113,769	118,816	123,863	128,910	N/A
2025-2026	111,983	117,182	122,380	127,579	132,778	N/A

APPENDIX B
SENIORITY LIST –UPDATED 5/30/23

<u>Name</u>	<u>Rank</u>	<u>Date of Hire</u>
James Breon	Sergeant	9/15/2003
Kyle Ficek	Sergeant	9/7/2004
Lauren Rickett	Sergeant	9/30/2019
Scott Rose	Patrol	8/17/1998
Michael Hicks	Patrol	4/30/2001
Katherine McCarthy	Patrol	12/17/2001
Michael Slager	Patrol	1/6/2014
Paul Shipley	Patrol	11/23/2015
Blake Fallon	Patrol	8/21/2017
Jason Highland	Patrol	7/16/2018
Mark Self	Patrol	9/10/2018
Drew Morgan	Patrol	8/16/2021
Dayne Frederick	Patrol	9/6/2022
Amanda Gaston	Patrol	11/14/2022
Selena Rodriguez	Patrol	4/17/2023
Anthony Garcia	Patrol	7/24/2023

APPENDIX C ISSUED EQUIPMENT

The following equipment will be issued by the Village to employees starting on the West Dundee Police Department.

- 2 badges
- 5 long sleeve uniform shirts
- 5 short sleeve uniform shirts
- 5 pairs uniform trousers
- 1 pair black uniform shoes or boots
- 2 uniform hats (winter/summer)
- 3 ties
- 1 tie bar
- 3 name plates
- 1 uniform leather or Gortex jacket
- 1 Lightweight jacket
- 1 raincoat and hat cover
- Gun belt
- Holster
- Handcuffs and handcuff case
- Keepers
- Magazine pouch
- Flashlight
- Flashlight holder
- Key holder
- Reflective traffic vest
- Metal ticket book cover
- Pepper Spray and Carrier
- Duty Bag
- Writing Implements
- Rifle Accessories (upon certification)

Officers shall be allowed to purchase other equipment that would be needed or useful in the execution of the officer's duties with approval of the Chief of Police.

APPENDIX D DRUG TESTING

I. SCOPE

This order applies to all sworn employees of the West Dundee Police Department. The tests will be administered under the Substance Abuse Management Safety & Health Administration's (S.A.M.S.H.A.), formerly N.I.D.A., custody collection standards.

II. DEFINITIONS

Employees: All full-time, sworn employees of the West Dundee Police Department.

Health Services: Services will be provided by a vendor that was mutually agreed upon by the Village of West Dundee and the Metropolitan Alliance of Police. The current services (which may be subject to change, provided both parties are in agreement) are provided by:

- A. Northwestern Medicine Hospital, McHenry, IL (specimen collection)
- B. Laboratories (specimen screening) -Provided through Northwestern Medicine Hospital's vendor

Drugs: "Drugs", for the purposes of this policy, do not include use by prescription or other uses authorized by both state and federal law. The possession or use of the below listed controlled substances without a prescription is unlawful:

- Amphetamines, e.g., Dexadrine, speed, ice, crank, uppers
- Barbiturates, e.g., downers, seconal, Nembutal, amyta
- Benzodiazepines, e.g., dalmane, Librium, valium
- Marijuana metabolites
- Methaqualone, e.g., Quaaludes
- Phencyclidine, e.g., PCP, angel dust
- Ecstasy (MONA)
- Cocaine metabolites
- Methadone
- Opiate metabolites
- Propoxyphene

The initial testing levels for ng/ml levels shall be as defined by S.A.M.S.H.A.

Medical Review Officer (MRO): Designated by Health Services. Positive tests will be reviewed by the MRO at Health Services for final determination of results. This determination will be communicated directly from the MRO to the Chief of Police.

Before a positive test is reported to the employer, the hospital or lab will have the results reviewed by the MRO who will verify the existence of a valid prescription or conflict that might

result in a false positive. If the MRO determines that there is a valid reason for a false positive, the results will be reported to the employer as a negative and final.

Use: A positive result, which is verified by the MRO review and confirmation and indicates the presence of the drug, its metabolites or a masking agent as indicated in the initial concentration levels.

Department: West Dundee Police

Department Village: Village of West Dundee

I. POLICY

The work place will be free from the manufacture, distribution, possession and *use* of *drugs* and the abuse of controlled substances. The *Department* will meet the requirements of the Drug Free Work Place Act.

II. TESTING

Effective upon the execution of this Agreement, an *employee* who has been involved in a vehicle accident may be required to submit to a drug test as set forth herein as well as a blood alcohol test.

On a periodic basis, but no more than two (2) times per calendar quarter, an *employee* will be randomly tested. Up to, but no more than eight (8), *employees* will be *drug* tested from the random draw within the calendar year. The *employee(s)* for the random *drug* testing will be chosen by the medical facility. The facility will contact the Chief of Police or his designee who will contact each randomly drawn *employee* while he/she is on duty to advise them of the test. *Employees* will submit to the test immediately upon notice from the Chief of Police or his designee. *Employees* will be allowed to take the test in civilian clothing. If an *employee* chooses to wear civilian clothes during the testing, he/she must have the change of clothes available at the station. *Employees* will not be allowed to delay the process to obtain clothing or to change anywhere other than the police station.

Usual and accepted practices for the collection and preservation of urine samples shall be followed. A similar amount of the sample shall be set aside and preserved for later testing if requested by the *employee* or the Chief of Police. All samples shall be preserved in accordance with Section 40.99 of Subpart F, Drug Testing Laboratories, of Part 40, Procedures for Transportation Workplace Drug and Alcohol Testing Program, Effective August 1,2001,which provides for the extension of preservation of the split sample.

If a test is positive, the reserved sample shall be held according to the policy and procedures set forth by the laboratory. The methods employed in the collection of samples for testing shall be reasonable and provide for security of the sample and its protection from adulteration. Reasonable attention shall be given (1) to an *employee's* need for privacy during the collection of the urine sample, (2) that the testing is done in an appropriate setting and (3) to ensure that the integrity of the test sample is not compromised. The Chapter will be provided with an annual list

of patrol officers and non-patrol officers tested in the random drug tests (e.g., 5-1-02: Non-Patrol Officer, 6-1 Patrol Officer).

Nothing in this policy shall be construed to limit the authority of the Chief of Police or his designee to require a non-random drug or alcohol test for cause.

III. VIOLATION OF DRUG/ALCOHOL POLICY

The finding of an *employee's use*, sale, possession, purchase or delivery of illegal *drugs* at any time, on or off the job, while employed by the *Village* (except as required in the line of duty), abuse of prescribed drugs, failure to report to supervisors any known adverse side effects of medication or prescription *drugs* that the *employee* may be taking, consumption or possession of alcohol while on duty (except as required in the line of duty), or who is found to test positive for an illegal *drug*, or whose test indicates the abuse of a prescription *drug*, or who is found to have been under the influence of alcohol while on duty (defined as a blood alcohol level at or more than .02%) shall be cause for discipline, including termination. NOTE: The foregoing standard shall not preclude the *Village* from attempting to show that test results below a .02% blood alcohol level demonstrate that the *employee* was or would be unable to properly perform his/her job duties, but the *Village* shall bear the burden of proof in such cases.

The *Village* recognizes that there may be situations in which an *employee* tests positive for legal *drugs* or alcohol, but disciplinary action would not be in the interests of the *employee* or the *Village* and, instead, the *employee* may be placed on rehabilitation.

Any failure to submit to a drug test during random testing may result in *Departmental* discipline.

Nothing in this Section shall be construed to waive any *employee's* (excluding probationary *employees*) right to be heard on matters of discipline before the *Village's* Board of Police and Fire Commissioners.

Representatives of the Union and Management shall observe the selection process at NIMC prior to the implementation of this policy.

If an *employee* is assigned to the North Central Narcotics Task Force or similar task force and a random drug testing policy exists for that task force, the *employee* shall be tested in accordance with that policy. If no drug testing policy exists, he/she will be tested in accordance with this policy. In any event, upon return to duty with the *Department* after having served on a task force, a drug test shall occur within thirty (30) days. That test shall not be included in the count of permissible quarterly and yearly random tests as set forth above.

Employees shall be informed of this policy prior to assignment and acceptance to the Task Force.

IV. REHABILITATION

Should the *Village* elect not to seek the termination of an *employee* who has tested positive for legal *drugs* or alcohol, participation in and successful completion of the *Village* Employee Assistance Program (EAP) or other program approved by the *employee's* current health provider is mandatory.

- A. During participation in the EAP program, the employee will be placed on FMLA leave and will be required to utilize his/her benefit hours in the following order: sick time, vacation time, comp time, floating holidays. Once the employee has exhausted all of his/her benefit hours, he/she will go on unpaid leave until cleared from the program.
- B. Once approved to return to work by the case manager of the EAP or other program, the employee may be tested up to twelve (12) times during the twenty-four (24) months following the employee's return to work.
- C. Employees will be responsible for the entire cost of the treatment program and follow-up random drug testing costs not covered by their insurance.
- D. Refusal to participate in the EAP or other approved program may result in disciplinary action up to termination

V. VOLUNTARY REQUESTS FOR ASSISTANCE

The Chief of Police shall take no adverse employment action against an *employee* who voluntarily, with prior notice to the *Village*, seeks and satisfactorily participates in treatment, counseling or other support for an alcohol or *drug* abuse or dependency problem. The Chief of Police may require the *employee* to be evaluated by a substance abuse professional to determine fitness to return to duty or assignment.

For the purpose of this section, voluntary treatment, counseling or other support means help sought by an *employee* prior to an observation by a member of the *Department* of facts giving rise to a reasonable suspicion, prior to any misconduct on or off duty which causes his/her to come to the attention of a law enforcement agency or an internal inquiry by the *Department*, and prior to any random drug test or other test as specified in Article IV herein.

The Village may make available through its EAP a means by which an *employee* may obtain referrals and treatment.

Voluntary requests for assistance will be handled in a confidential manner. Any *employee* who voluntarily seeks assistance with problems related to prescribed *drugs* or alcohol shall not be subject to any disciplinary action by reason of such request for assistance, as long as the request for assistance was made prior to any notification of a random drug test or a test is requested by the Chief of Police, or his designee based upon a reasonable suspicion of *drug* or alcohol use.

VI CONFIDENTIALITY

All tests are held in confidence in accordance with privacy laws. They will be stored in the *Village's* Human Resources Director's files, separate from regular personnel files.

IX: UPDATES

This policy will be updated as necessary upon agreement by both parties.

POLICY VIOLATIONS

Violations of this policy may subject *employees* to disciplinary action up to and including termination.

OFFICER INVOLVED SHOOTINGS

The Village and the Union agree to follow West Dundee Police Department Policy 305 regarding officer involved shootings. Both parties agree that the policy will not be revised without negotiations with the chapter.

MISCELLANEOUS/OTHER:

The Employer agrees that it will not take adverse employment action against an employee based solely on the lawful possession or consumption of cannabis or cannabis infused products by individuals who reside in the employee's primary household where no other Policy violation occurred.

		METROPOLITAN ALLIANCE OF POLICE	
Dept: _____ Chap# _____		Page 1	
GRIEVANCE REPORT		Grievance # _____	
GRIEVANT DATA (If more than one (1) grievant, list separately in narrative)		Grievant(s) or MAP chapter rep MUST Sign Grievance	
Grievant's Name: Last, First MI:		Star #:	
Incident Date:	Contract Article and Section Violated:	Date/Time Step 1 Initiated:	
Shift Assignment:	Supervisor:	Presented To:	
Grievant's Signature:		MAP chapter Rep. Signature:	
S T E P 1	STATEMENT OF GRIEVANCE STEP 1		Briefly state the cause of your grievance and the remedy you seek
	See attached for additional information ☐		
	Employer's Step 1 response and reasons therefore:		
S T E P 2	Immediate supervisor's signature:		
	Response given to:		Date/Time of response:
	REASONS FOR ADVANCING GRIEVANCE STEP 2		
	See attached for additional information ☐		
	Grievant's signature:		
Presented to:		Date/Time Step 2 initiated:	
Employer designee's response and reasons therefore:			
Employer designee's signature			
Response given to:			
METROPOLITAN ALLIANCE OF POLICE			

Dept: _____ Chapter # _____		
GRIEVANCE REPORT		
REASONS FOR ADVANCING GRIEVANCE	STEP 3 Date/Time of response: _____	
 Page 2 Grievance # _____		
S T E P 3	See attached for additional information	
	Grievant's Signature: _____	
	Presented To: _____	
	Employer Designee's Response and Reasons Therefore: _____	
	Date/Time Step 3 Initiated: _____	
S T E P 3	Employer Designee's Signature: _____	
	Response Given To: _____	
	REASONS FOR ADVANCING GRIEVANCE	
	STEP 4	
	Date/Time of Response: _____	
S T E P 4	See attached for additional information	
	Grievant's Signature: _____ Date/Time : _____	
	DATE GRIEVANCE ADVANCED TO ARBITRATION AND PERSON SERVED WITH NOTICE	
	Chapter President or Designee Signature : _____	
	Date/Time : _____	
A R B I T R A T I O	Chapter president or designee signature: _____	

MEMORANDUM OF AGREEMENT

This Memorandum of Agreement ("MOA") is entered into on the date indicated below by and between the Village of West Dundee, Illinois and its Police Department (the "Village") and the Metropolitan Alliance of Police, Chapter #153 ("Union"). The Village and the Union are collectively referred to as the "Parties". The Parties mutually agree to the following:

1. The Village and the Union entered into a collective bargaining agreement covering the period from May 1, 2023 to April 30, 2026 (the "CBA").
2. During negotiations that resulted in the CBA, the Parties reached a mutual agreement that included certain revisions to the language referenced in the predecessor agreement at Sections 8.1 related to "Holidays" and at Section 8.2 related to "Holiday Pay".
3. After the CBA was ratified and executed by authorized representatives of the Parties, a scrivener's error in Section 8.1 was detected which resulted in the inadvertent removal of the reference to "floating holidays". The Parties agree that the reference to floating holidays should have remained in effect (status quo) and incorporated into the final CBA that was executed by the Parties.
4. To correct this error, the Parties mutually agree that the following language will be returned to Section 8.1 of the CBA: *"Effective January 8th, 2024, all employees will receive 60 hours of floating holiday time, to be used at the employee's discretion. Requests for use of the floating holidays shall not be unreasonably denied."*
5. This MOA will be in effect for the remaining term of the CBA. Neither party shall be obligated to continue the terms of this MOA in any successor agreement. Further, the terms of this MOA will not be considered or construed as *status quo* for purposes of any future good faith bargaining between the Parties and/or interest arbitration hearing between the Parties with respect to any dispute arising out of the CBA or any successor agreement.
6. The individuals who sign below represent they are authorized to bind their respective party to these terms.

Metropolitan Alliance of Police Chapter 153

By: _____

Date: _____

**Village of West Dundee Illinois and
its Police Department**

By: _____

Date: _____